



STANDING ORDER NO. Lic. & Leg./25/2022

GUIDELINES FOR PERMITTING COMMERCIAL USE OF FARM HOUSES FOR HOLDING SOCIAL FUNCTIONS

1. INTRODUCTION

Farm Houses that fulfill requisite guidelines are permitted to hold social functions such as weddings, parties etc. The following guidelines were framed for holding social functions at Farm Houses by the GNCT of Delhi and approved by the Hon'ble High Court of Delhi in WP (C) No. 14261/04 - Bharastachar Virodhi Sangathan Vs. L.G., Delhi and Ors.:-

- (i) Farm Houses constructed as per sanctioned building plan and having sufficient parking space (minimum 1 acre for each 2.5 acre Farm area) inside their boundary wall may apply to the office of the Zonal Deputy Commissioner, MCD for holding social functions on their premises. The parking area within the Farm houses should be properly demarcated with separate Entry and Exit gates. Farm Houses owners shall deploy their own security guards to manage the parking within the premises.
- (ii) No parking shall be permitted outside the Farm Houses on the roadside and in the event of violations, the violators will be prosecuted in accordance with the law.
- (iii) Only such Farm Houses should be selected which have proper access road from main road to the Farm House. The minimum width of the access road to such Farm House from the main road should be 60 feet. Farm Houses should not be located at a road which ends in a dead end.
- (iv) For each social function, an amount of Rs. 20,000/- per event for Farm House of 5 acres and above, and Rs. 10,000/- per event for Farm House below 5 acres but not less than 2.05 acre would be levied by the DDA or the MCD as the case may be. Booking of Farm House(s) by MCD, may done through Citizen Services Bureau (CSB)/Internet.

- (v) A committee under the Chairmanship of the Zonal Deputy Commissioner, with the Asstt. Commissioner of Traffic Police, ACP(Sub- Division), Divisional Fire Officer, the Sub-Divisional Magistrate, and a representative of DDA in case of DDA Area Land, would scrutinize such applications.
- (vi) Permission should be given on rotational basis within the municipal zone, so that each Farm House is not used for more than 120 days in a year. Permission should be based on factors such as number of guests, approximate number of vehicles, nature of function etc.
- (vii) Farm Houses shall take special precautions regarding use of noiseless generators, use of loudspeakers, musical instruments etc., so that noise pollution level remains within the permissible limit in conformity with the guidelines/norms issued by CPCB/DPCC. Similarly, use of fire-crackers within and outside the Farm Houses should be within the permissible limit and the air pollution level should not exceed the prescribed limits stipulated by the CPCB/DPCC.
- (viii) No loudspeakers and bands should be permitted beyond 10 PM.
- (ix) Processions and horse-drawn carriage should not be permitted on the roads outside the Farm Houses.
- (x) Strict enforcement action should be taken by the concerned authorities against those Farm Houses, who use their premises for commercial purposes without the permission of the DMC Committee.
- (xi) Sanitary conditions should be maintained in and around Farm House during and after the functions and in the event of violation, the violators will be prosecuted in accordance with the law.
- (xii) The instructions/guidelines shall remain in force till it is further reviewed by the Government.

The above mentioned guidelines need strict compliance. In addition, the compliance of following measures should also be ensured by ACsP/Traffic and ACsP/Sub-Division:-

- (i) All Assistant Commissioners of Police, Traffic and ACP/Sub-Division should always attend the meeting of the Committee constituted under the Zonal Deputy Commissioner, MCD to scrutinize applications received for organizing such functions. They must physically check the Farm House where the function is to be organized before grant of permission. They should keep

scrutinize applications received for organizing such functions. They must physically check the Farm House where the function is to be organized before grant of permission. They should keep the sketch of each and every Farm House in their respective offices. Inputs of local TI of the area and concerned SHO should also be taken for deciding the case.

- (ii) Farm Houses should have proper fencing and security light.
- (iii) Farm Houses should have proper fire fighting arrangements in working condition.
- (iv) Strict action should be taken against the owners of the Farm Houses which are found causing noise pollution through generators. Also action should be taken for playing musical instruments/DJ and loudspeaker, using loud musical instruments including percussion instruments like drums etc. and bursting of crackers etc. after 10 P.M.
- (v) As per guidelines mentioned above no procession and horse-drawn carriage should be permitted "on the roads outside the Farm House. Strict action should be taken for any violation under the provisions of Delhi Police Act.
- (vi) If any Farm House committing any violation of the specified guidelines as mentioned above, such Farm Houses should be debarred for holding any function for a period of 12 months and no permission should be recommended by the ACP/Traffic and ACP/Sub-Division concerned.
- (vii) The movement of heavy goods vehicles and buses should be regulated on roads near the Farm Houses where permission for holding such function is granted.
- (viii) ACP/Traffic District and ACP/Sub-Division of District shall maintain a separate register for monitoring the social function that are proposed to be held at each Farm House, so that it is not granted permission for holding more than 120 functions in a year. The register should have separate pages for each Farm House containing the following details:-

Sl. No.	Month Date & Time for which permission granted	Name of the party to which permission granted	Number of guests likely to attend the function	Nature of function with supporting documents viz. invitation card etc.	Remarks, if any

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All ACsP/Traffic District, SDPOs, SHOs and TIs/Circles shall follow and implement these guidelines in their respective areas in true letter and spirit. Strict action should be taken against the defaulters. All ACsP/Traffic, District and SDPOs shall personally attend the Committee meeting and give their inputs, while deciding the applications for such functions to be organized at Farm House.

All concerned must ensure strict compliance of this Standing Order.

2. SUPERSESSION CLAUSE

This Standing Order supersedes the previous Standing Order No.385/2009 issued vide No. 24101-24250/Record Branch/PHQ dated 31.12.2009

3. DISCLAIMER

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.

Rakesh Asthana

(RAKESH ASTHANA)
COMMISSIONER OF POLICE:
DELHI.

28.4.2022

No. 17801 - 17950 /Record Branch/PHQ dated Delhi, the 28-04-2022

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ(IV)/PHQ with the direction to upload the Standing Order on Intra-DP.

7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
9. PS/Reader to C.P., Delhi.
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